

AUSTRALIAN E-BIKE REGULATIONS 2026

National Compliance & Parental Liability Guide — All States & Territories

NATIONAL STANDARD: 250W MAXIMUM · 25 KM/H MOTOR CUT-OFF · EN 15194 CERTIFICATION

1. UNIVERSAL RULES (ALL STATES)

- **250W Maximum:** Motor power must not exceed 250W on any public road or path.
- **25 km/h Cut-off:** Motor assistance must stop at 25 km/h in all jurisdictions.
- **No Throttle Cruising:** Throttle-only riding above 6 km/h is illegal nationwide.
- **EN 15194 Standard:** Mandatory on all new e-bikes sold in NSW from Feb 2026; a national import standard applies from Dec 2025. Road-use compliance deadlines vary by state — see table below.
- **Over 250W = Motorcycle:** Requires registration, insurance and a licence. Riding without these is a criminal offence.
- **Helmet Required:** An approved bicycle helmet is mandatory in all states.

2. STATE-BY-STATE KEY DIFFERENCES

| State | Footpaths       | Age  | Key Note                                                                                     |
|-------|-----------------|------|----------------------------------------------------------------------------------------------|
| NSW   | Adults: 10 km/h | —    | Seizure & crush powers (Mar 2026). 500W grace period until 1 Mar 2029.                       |
| VIC   | Under 13 only   | —    | Strictest footpath rule. Drone & blitz enforcement (52% non-compliant, CBD).                 |
| QLD   | 12 km/h cap     | 12+* | Seizure powers (1 Jul 2026); tiered ages from 31 Aug. AMA QLD called the law “watered down.” |
| WA    | Shared paths    | 16+  | Ride Safe inquiry (Dec 2025): 32/33 recommendations backed; national push underway.          |
| SA    | All ages        | —    | E-scooters/PMDs legalised Jul 2025. Rules under review since Jun 2026.                       |
| TAS   | All ages        | —    | Mirrors national standard.                                                                   |
| ACT   | All ages        | —    | Extensive shared path network in Canberra.                                                   |
| NT    | All ages        | —    | Mirrors national standard.                                                                   |

\* QLD: under-12s cannot ride in public; ages 12–15 must be directly supervised; 16+ needs a learner’s licence.

**MEDICAL ALERT (Jun 2026):** AMA Queensland called weakened e-mobility laws a “shocking disregard for safety.” Emergency departments nationwide report rising child injuries from non-compliant e-bikes.

3. PARENTS: IS YOUR HOME AT RISK?

If an underage rider causes an accident on an illegal e-bike:

1. **NO INSURANCE:** Home policies exclude “unregistered motor vehicles.” Illegal e-bikes fall under this category.
2. **PERSONAL LIABILITY:** Parents can be sued for millions in medical costs and damages.
3. **ASSET LIQUIDATION:** Your house, savings and assets can be seized to pay legal debts.

TYPICAL PENALTIES

**Unregistered Vehicle:** \$500 (NT) to \$3,189 (QLD)  
**Uninsured Vehicle:** \$500 (NT) to \$5,500+ (NSW)  
**Unlicensed Rider:** Court attendance  
**No Helmet:** \$25 (NT) to \$518 (QLD)  
**Drink Riding (QLD):** Up to \$6,908  
**Footpath Speeding (NSW):** Up to \$2,200 — VIC bans adults outright  
**Destruction Order (NSW/QLD):** Final — no return

Amounts vary by state. Check your state page for exact figures.

NSW SPOTLIGHT

**Operation E-Voltage** (Sep 2026): drone-led Northern Beaches operation — 36 non-compliant e-bikes seized for destruction, 16 penalty notices.

Roadside **Dyno Units** verify the 25 km/h cut-off on the spot (NSW only).

Broadcaster **Margaret Throsby**, 84, injured by an e-bike (Sep 2026) — renewed calls for stricter under-age e-bike laws.

QUICK COMPLIANCE CHECK

- ☐ Motor rated **250W or less?**
- ☐ Motor assist cuts out at **25 km/h?**
- ☐ **No throttle** above 6 km/h?
- ☐ **EN 15194** certificate or mark?
- ☐ Rider meets your state’s **minimum age?**
- ☐ Rider wearing an **approved helmet?**

All yes = road legal in all states.

NATIONAL SAFETY SNAPSHOT

**15+ deaths (2025):** Reported nationally in e-mobility incidents (NRMA)

**52% non-compliant:** Melbourne CBD blitz, Operation Consider

**\$6.6M funding:** ACCC national safety standard, announced May 2026

**12 deaths (2025):** Queensland alone, per Amy’s Foundation

FULL STATE-BY-STATE GUIDE



e-bikelaws.au

OFFICIAL STATUTORY REFERENCE

Road Rules 2014 (each state) | Road Transport Act 2013 (NSW) | Road Vehicle Standards Act 2018 (Cth)

For educational purposes only. Always refer to your state’s current legislation. Information current as at October 2026.